

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 1131

By: Pogemiller

4
5
6 AS INTRODUCED

7 An Act relating to schools; amending 70 O.S. 2021,
8 Section 1210.545, which relates to school assessment
9 annual reports; requiring the State Department of
10 Education to amend the state plan under the Every
11 Student Succeeds Act; requiring the amendment to be
12 filed by a certain date; modifying certain assessment
13 indicators for an approved amendment; providing an
14 effective date; and declaring an emergency.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.545, is
17 amended to read as follows:

18 Section 1210.545. A. Except as otherwise provided, as part of
19 the accountability system developed as provided for in Section
20 1210.541 of this title, the State Board of Education shall prepare
21 annual reports of the results of the Oklahoma School Testing Program
22 which describe student achievement in the state, and each school
23 site, pursuant to the Elementary and Secondary Education Act of 1965
24 (ESEA) as reauthorized by P.L. No. 114-95, also known as the Every
Student Succeeds Act (ESSA), and any related federal regulations.

1 B. The annual report as required pursuant to subsection A of
2 this section shall identify school sites as having one of the
3 following grades for each indicator, separately, and by a single
4 overview grade of all indicators, defined according to rules of the
5 State Board of Education:

- 6 1. "A" means schools making excellent progress;
- 7 2. "B" means schools making above average progress;
- 8 3. "C" means schools making satisfactory progress;
- 9 4. "D" means schools making less than satisfactory progress;

10 and

- 11 5. "F" means schools failing to make adequate progress.

12 C. Each school that has students who are tested and included in
13 the school grading system as provided for in this section shall
14 receive a school grade, except as follows:

15 1. A school shall not receive a school grade if the number of
16 students tested and included in the school grading system is less
17 than the minimum sample size necessary for statistical reliability
18 and prevention of the unlawful release of personally identifiable
19 student data. The State Board of Education is directed to establish
20 the lowest minimum sample size necessary to meet the requirements of
21 this paragraph; and

22 2. The academic performance of students who are enrolled full-
23 time in an online program that is offered by a school district or
24 charter school that is not the district of residence or is not

1 located in the district of residence of the student shall be
2 reported separately by the school district or charter school and
3 shall not be included when determining the grade of the school site
4 or charter school.

5 D. The State Board of Education may adopt alternate systems of
6 accountability for statewide virtual charter schools, alternative
7 education programs as defined in Section 1210.568 of this title, and
8 schools serving only grades prekindergarten or kindergarten through
9 two.

10 E. The grade of a school shall be based on a multimeasures
11 approach to accountability in accordance with the Elementary and
12 Secondary Education Act of 1965 (ESEA) as reauthorized by P.L. No.
13 114-95, also known as the Every Student Succeeds Act (ESSA) and any
14 federal regulations that include, but are not limited to, the
15 following indicators:

16 1. Statewide assessments, including the establishment of
17 student performance bands;

18 2. Graduation rates for high schools;

19 3. Statewide academic measures for elementary and middle
20 schools;

21 4. English language proficiency for English learners; and

22 5. At least one additional statewide measure of school quality
23 or student success, including, but not limited to, school climate,
24

1 school safety, student engagement, educator engagement, and/or
2 advanced coursework and postsecondary readiness.

3 F. Of the indicators included in subsection E of this section,
4 not less than seventy percent (70%) of the overview grade must be
5 given to indicators 1, 2, 3 and 4 and, in the aggregate, with not
6 more than thirty percent (30%) of the grade given to indicator 5.

7 G. Further, the grade of an elementary or middle school site
8 shall include, but not be limited to, a measure of status for
9 English language arts (ELA), math and science, growth in ELA and
10 math, English Language Proficiency Assessment (ELPA) progress, and
11 chronic absenteeism.

12 H. The grade of a high school site shall include, but not be
13 limited to, a measure of status for English language arts (ELA),
14 math and science status, English Language Proficiency Assessment
15 (ELPA) progress, graduation rate, chronic absenteeism and
16 postsecondary opportunities. For purposes of this section
17 postsecondary opportunities shall include Advanced Placement,
18 International Baccalaureate, dual and concurrent enrollment,
19 internships, mentorships and apprenticeships, and industry
20 certifications. The Board shall adopt a time line for moving from
21 completion of such opportunities to crediting achievement of such
22 opportunities.

23 I. The annual report shall identify the performance of each
24 school as having improved, remained the same, or declined. This

1 school improvement rating shall be based on a comparison of the
2 student and school performance data of the current year to the
3 previous year data.

4 J. The State Department of Education shall annually develop a
5 school site report card to be delivered to parents throughout each
6 school district. The report card shall be in accordance with the
7 requirements of the Elementary and Secondary Education Act of 1965
8 (ESEA), as reauthorized and amended by P.L. No. 114-95, also known
9 as the Every Student Succeeds Act (ESSA) and includes the grade for
10 the school, information regarding school improvement, an explanation
11 of school performance, and indicators of return on investment. The
12 report card for each school site shall be published annually by the
13 Department on its website, and every school district shall provide
14 the school site report card to the parent or guardian of each
15 student enrolled in the school site. In order to provide
16 information regarding school performance for school report cards
17 issued during the 2016-2017 and 2017-2018 school year, the
18 Department shall include an explanation of the changes to the
19 statewide system of student assessments as required in Section
20 1210.508 of this title and how the transition in assessments may
21 impact school performance. The Department shall issue school report
22 cards using the 2016-2017 school year assessment data that is
23 available.

1 K. The Legislature may factor in the performance of schools in
2 calculating any performance-based funding policy that is provided to
3 public school districts.

4 L. The State Board of Education shall promulgate rules to
5 implement the provisions of this section.

6 M. The State Board of Education shall amend the State ESSA Plan
7 in accordance with the requirements of the Every Student Succeeds
8 Act (ESSA) to replace the measure of chronic absenteeism with a
9 survey of school climate. The Board shall submit the proposed
10 amendment to the United States Department of Education no later than
11 January 1, 2026. If the amended state plan is approved by the
12 United States Department of Education, beginning with the 2026-2027
13 school year, the grade of an elementary, middle, and high school
14 site shall include a survey of school climate in lieu of chronic
15 absenteeism. The survey shall include questions for students,
16 teachers, school staff, and parents.

17 SECTION 2. This act shall become effective July 1, 2025.

18 SECTION 3. It being immediately necessary for the preservation
19 of the public peace, health or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

22
23 60-1-11035 SW 01/06/25
24